



File No.: RR/00048/2023

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by El Diario de Prensa Digital SL (hereinafter, the appellant or elDiario.es) against the resolution issued by the Director of the Spanish Agency for Data Protection dated December 27, 2022, and based on the following

FACTS

FIRST: On December 27, 2022, a resolution was issued by the Director of the Spanish Agency for Data Protection in file RR/00048/2023, by virtue of which El Diario de Prensa Digital SL was imposed: "FIRST: TO IMPOSE on EL DIARIO DE PRENSA DIGITAL SL., with NIF B86509254, for a violation of Article 5.1.c) of the GDPR, classified under Article 83.5 a) of the GDPR, a fine of 50,000 euros (fifty thousand euros).

SECOND: To confirm the following provisional measures imposed on EL DIARIO DE PRENSA DIGITAL SL:

- Removal or distortion of the victim's voice from its web addresses, preventing, to the extent that the state of technology allows, the re-uploading or reloading of exact copies or replicas by the same or other users.
- Removal or modification of the contents in such a way that it makes access and disposal of the original by third parties impossible, but guarantees its preservation, for the purpose of safeguarding the evidence that may be necessary in the course of the police or administrative investigation or the judicial process that may be instructed."

This resolution, which was notified to the appellant on December 29, 2022, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (LOPDGDD), and subsidiarily in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00196/2022, the following was recorded:

"PROVEN FACTS

FIRST: On ***DATE.1, the claimant filed a complaint with the Spanish Agency for Data Protection reporting that several media outlets published on their websites the audio of the statement before the judge of a victim of a multiple rape, to illustrate the news related to the trial in a case that was highly publicized, providing links to the news published on the websites of the complained media.

On ***DATE.2, a new document was received from the claimant stating that they had been able to verify that some media had removed that information, although they attached publications made by some media on Twitter where it was still available.

SECOND: On ***DATE.3, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

THIRD: The General Sub-Directorate of Data Inspection, in the exercise of its investigative activities, found the publication indicated below where the voice of the victim could be heard without distortion.

***URL.1

FOURTH: On April 3, 2022, a precautionary measure dated March 31, 2022, was notified to the defendant for the urgent removal of content or distortion of the voice of the participant in such a way that they could not be identified directly or indirectly, specifically from:

***URL.1

FIFTH: On April 5, 2022, a document was received by this Agency from this entity informing that elDiario.es had proceeded to the immediate removal of the video, making it impossible for third parties to access or dispose of it.

SIXTH: On April 7, 2022, it was verified that, at the link,

***URL.1

the content had been blocked. This verification was recorded in the Diligence of April 7, 2022."

THIRD: The appellant submitted on January 27, 2023, to this Spanish Agency for Data Protection, a reconsideration appeal. This document is divided into the following sections:

First. Background facts.

Second. Legal grounds.

1. Formal (Articles 112 and 113 of Law 39/2015, of October 1).
2. Regarding the lack of access to the file.
3. Regarding the protection of the voice as personal data. Highlighting the diligent attitude of elDiario.es and subsequently analyzing what it considers the crux of the matter.
4. Regarding the data controller.

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5. Regarding the responsibility of processing.
6. Regarding the necessary balance between the right to data protection and the right to information.
7. Regarding the violation of the principle of equality.
8. Regarding the violation of the principles of proportionality and classification of the infringement.
9. Regarding proportionality.
10. Violation of effective judicial protection due to the inadmissibility of requested evidence.

It concludes by requesting the revocation of the Resolution of December 27, 2022, as well as the immediate suspension of the enforceability of the contested Resolution, until the appeal for reconsideration is resolved.

For the most part, the appeal presented reproduces allegations made previously throughout the sanctioning procedure.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD).

II

Response to the allegations presented

In relation to the statements made by the appellant, which basically reiterate the allegations already presented throughout the sanctioning procedure, it should be noted that all of them have already been analyzed and dismissed in the Legal Grounds of the contested Resolution, as transcribed below:

Regarding the first section, entitled factual background, this Agency does not share the claims made by elDiario.es regarding the assertion that it has not obtained access or received copies of the complainant's writings dated ***DATE.1 and ***DATE.2, referring in this regard to the content of Legal Ground II of the Resolution of December 27, 2022.

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Regarding the letter dated May 20, 2022, by which the Agency responds to the request for access to the file and suspension of the deadlines for submitting a statement of allegations dated May 19, 2022, elDiario.es states the following:

“On May 20, 2022, a response was given to this request by sending a partial copy of the file, with the following argumentation:

‘As established in Article 5.1 b) of Regulation EU 2016/679, the personal data contained in the file may not be used in a manner incompatible with the purposes for which they were collected and processed. Therefore, they may only be used for the purposes that correspond to them under the law by virtue of their status as interested parties.

In order that your request does not undermine other rights equally deserving of protection, the copy of the documentation sent by this Sub-Directorate does not include any documentation that could affect public security, the prevention, investigation, and sanctioning of criminal, administrative, or disciplinary offenses, economic and commercial interests, professional secrecy, and intellectual and industrial property.’

This means of communication implies that this Agency decided to send you a partial copy of the file and justified this decision by including in the letter of May 20, 2022, the two paragraphs reproduced in the appeal.

Such insinuation does not align with how the events occurred. The Agency sent the requested file and, along with it, sent a model letter prepared for cases of requests for extension of deadlines and sending a copy of the file, in which those two paragraphs appear.

2. Regarding the lack of access to the file.

elDiario.es again asserts that its request for new access to the complete file dated May 23, 2022, was not addressed. It understands that it has had partial access to the file, reiterating that it has not been able to access the writings submitted by the complainant on ***DATE.1 and ***DATE.2. In its opinion, this would constitute a flagrant violation of rights, a possible reason for procedural nullity and administrative or even judicial sanction for the entity that denies access.

In relation to this allegation, this Agency refers to what is indicated in Legal Ground II of the Resolution of December 27, 2022.

It is reiterated that in the case examined, there has been no reduction in the exercise of the right of defense of the party being claimed, which has been able to argue throughout the sanctioning procedure what it deemed appropriate. For example, in the statement of allegations to the proposed resolution, elDiario.es invoked, in its defense, a reference made by the complainant in their writing of ***DATE.2, regarding the observation that some media outlets had removed information from their websites.

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3. On the protection of the voice as personal data:

EIDiario.es asserts that it has never disputed that the voice is an identifying data of the person, which is why it removed all audiovisual elements that included the victim's voice as soon as the AEPD requested it.

Next, the media outlet analyzes the diligent attitude of EIDiario.es:

This Agency refers to what has already been indicated in legal basis IX of the contested resolution.

On the other hand, new allegations made by EIDiario.es in the appeal document are analyzed:

In this regard, EIDiario.es states the following:

“There must be a note here regarding the Resolution being appealed, as in its point VIII (page 46), it even discusses this quick and diligent behavior, complying with the requirements of rigor and exquisite care mentioned in the Judgment of the National Court of October 17, 2007. This Resolution recalls that ‘the Agreement for the adoption of provisional measures directed at EIDiario.es was signed on March 31, 2022; for its part, the document from EIDiario.es indicating that it had proceeded to remove the video is dated April 4, 2022, and was registered with the AEPD on April 5, 2022.’

Such a misrepresentation of the facts seems more than surprising to us, since it is perfectly clear to the Agency, as it is to this party, that the Agreement for the adoption of provisional measures was notified to my client on April 3, 2022, as indicated in the present statement of facts (1 and 2), and that on April 4, 2022, my client sent a response document informing of the diligent taking of the appropriate measures. That is to say, the video was removed and all measures dictated by this Agency were

adopted as soon as knowledge of them was obtained.

The document dated ***DATE.2, from the same complainant, stating “that he has been able to verify that currently no publication of the claimed items is available,” demonstrates that such publications were removed by the media that were required to do so at the time. That is the same, no more and no less, as what EIDiario.es did: remove the video as soon as it was notified of the requirement to do so. The fact that the contested Resolution omits this fact, listing dates that evade the receipt of notification by my client, constitutes a very strange manipulation of the facts for which we can only protest vigorously, demanding the correction of this point since the facts confirm the extreme diligence and speed (less than 24 hours) with which EIDiario.es acted upon first learning of the provisional measures dictated and even of the existence of the procedure that initiates this case. Not taking into account points such as the one mentioned, it is not surprising that an unjust and/or clearly disproportionate Resolution is derived from this Agency.”

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In the paragraph of the Resolution mentioned by EIDiario.es, the following assertion made by the aforementioned media outlet in its allegations to the proposed resolution is rebutted:

(the underlining is ours)

“and above all overlooking:

d) the diligent action of eldiario.es immediately removing all audiovisual elements that included the victim's voice as soon as this Agency requested it.

This was acknowledged by the same complainant as stated in the Receipt of Presentation in the Registration Office dated ***DATE.2, addressed to formulate a notice to Twitter, where it is explicitly stated that ‘I observe that there are media outlets that have removed that information from their websites (I thank them for their agility, in a regrettable matter for the victim).’”

In response to both the new allegation made in the appeal document, which has been previously reproduced, and to the allegation already made by EIDiario.es in the allegations to the proposed resolution, which appears in the previous paragraph, this Agency states the following:

1. In the complaint dated ***DATE.1, the following web address related to EIDiario.es was included:
***URL.1

2. As stated in the file, the complainant in his document dated ***DATE.2 indicated the following: (the underlining is ours).

“On ***DATE.1 I informed the AEPD that several media outlets had disseminated on their websites and on their social media the audios of the victim (...). I observe that there are media outlets that have removed that information from their websites (I thank them for their agility, in a regrettable matter for the victim) but it is still present on their social media. (...)”

3. In the Diligence of April 7, 2022, it is stated that on March 30, 2022, the reported content was present on EIDiario.es's YouTube channel at the URL:

***URL.1

This diligence includes a screenshot of the content published on March 30, 2022.

4. On March 31, 2022, the AEPD issued an Agreement for the adoption of provisional measures for the urgent removal of said content, which EIDiario.es accessed on April 3, 2022, as stated in the file.

5. In the Diligence of April 7, 2022, the following is indicated:

Likewise, it was requested from this entity through notification of precautionary measures the removal of content or the distortion of the victim's voice in such a way that it could not be...

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identifying directly or indirectly, it is verified as of April 7, 2022 that the content has been blocked.”

Attached is the verification of the removed content dated April 7, 2022.

6. The reference made by the claimant in their document dated ***DATE.2 could not refer to elDiario.es, since the content mentioned in the claimant's document dated ***DATE.1 was still available as of March 30, 2022 (...).

7. elDiario.es removed the content as a result of the request from this Agency dated March 31, 2022. Therefore, it was not a spontaneous removal and was not initiated by them.

Continuing with the content of the appeal for reconsideration, in the allegations grouped under the title “On the data controller,”

section 4 of the appeal, elDiario.es reproduces allegations already made in the proposed resolution. Despite the title, these do not determine who is, in the opinion of the media outlet, the data controller, but rather assert that the processing was lawful according to the provisions of Article 6.1 letters e) and f) of the GDPR.

They also focus their attention on the right to information (Article 20 of the Spanish Constitution), Article 681.2 of the LeCrim, the Justice Communication Protocol, concluding with a reference to Article 8.2 of the LOPDGDD.

Regarding the content of this section, this Agency refers to the legal grounds of the contested resolution, especially to legal grounds IV and V.

In this section of the appeal document, elDiario.es states:

“It is surprising that point V of the Resolution being appealed refers to Article 82 of the LOPDGDD when it states that ‘the processing of personal data may only be considered based on the fulfillment of a mission carried out in the public interest or in the exercise of public powers conferred to the controller, in the terms provided in Article 6.1e) of Regulation EU 2016/679, when it derives from a competence attributed by a norm with the rank of law.’ It is possible that the Agency considers that the right to information, enshrined in Article 20 of the Constitution and configured as one of the fundamental rights, does not form part of a Law. This would be an unprecedented assertion, just as it would be to consider that the Criminal Procedure Law does not apply in this case, which in Articles 680 and 681 recognizes the principle of publicity of criminal proceedings, with its limits, or the Organic Law of the Judiciary when in its Articles 263 and following regulates the proper treatment of personal data.” This Agency reiterates that in this case it would not be appropriate to invoke Article 6.1 e) of the GDPR as a legitimizing basis, since there has been no attribution through a norm with the rank of law, as required by Article 8.2 of the LOPDGDD.

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In section 5 of the appeal document, titled “On the responsibility for processing,” it reproduces allegations previously made by elDiario.es, in which it asserts that the data controller is the Superior Court of Justice of ***CCAA. Consequently, this Agency refers to the content of legal basis IV of the resolution dated December 27, 2022. Additionally, it states that in the analyzed case, this Agency has sanctioned the data controller: elDiario.es.

In section 6 of the appeal, titled “On the necessary balance between the right to data protection and the right to information,” elDiario.es again reproduces allegations previously raised, asserting that the contested resolution does not find, in its opinion, any balance between the right to data protection and the right to information, unlike elDiario.es, which, according to this media outlet, advocates for weighting. It then proceeds to explain what it considers this weighting to consist of.

In response to these allegations, this Agency refers to the content of legal basis V of the resolution dated December 27, 2022.

Section 7 of the appeal is titled “On the violation of the principle of equality.”

It reproduces allegations previously made (the concurrence of the circumstances provided for in articles 6.1 letters e) and f) of the GDPR, article 20 of the Spanish Constitution linked to the principle of

publicity of justice (article 120 CE), the constitutional jurisprudence does not make any distinction between written press and audiovisual media, the judicial body decided not to limit the exercise of the freedom of information, the video was provided by the EFE agency, asserting that no sanction should be imposed on this media outlet for fulfilling its constitutional function as a vehicle of the right to information).

In response to these allegations, this Agency refers to the legal bases of the contested resolution, particularly to legal bases IV, V, and VI.

Section 8 of the appeal is titled "On the violation of the principles of proportionality and typification of the infringement."

This section begins by stating the following:

"The sanctioning body already admitted, in its Proposal for Resolution, that it applied article 72.1.a) of the LUPDGDD, which includes a type of infringement considered very serious, 'there being no other infringement that could be applied to the facts, neither serious nor minor.'"

At that time, an allegation was already presented against this assertion, indicating that perhaps there was no reflection of this party's actions in the types enumerated in that law, neither in a minor form, nor in a serious form, much less in a "very serious" form.

Now, however, the contested Resolution informs us that this typification was made "only for the purposes of the prescription of the infringement," thus the "very serious" nature is nonexistent for the true article supposedly typifying the conduct, which would be article 83.5 paragraph a) of the GDPR."

Next, elDiario.es reproduces in its appeal document the content of that article.

The appellant insists again, repeating allegations already made, that the actions of elDiario.es did not violate article 5 of the GDPR. Concluding that article 83.5 of the GDPR is not applicable.

In response to this section, this Agency refers to the legal bases of the contested resolution in which it explains why it understands that the conduct of the media outlet has violated the principle of data minimization.

The next section, number 9, of the appeal document is titled "On Proportionality." In it, allegations previously made are reproduced. The following statements from elDiario.es are noteworthy:

"(...) it is important to pay attention to the qualification made ('very serious') by this Agency 'in relation to the prescription,' since, if it is exclusively for the purposes of prescription, it should not be for the purposes of sanction."

"We insist: the contested Resolution qualifies the conduct as 'very serious' exclusively for the purposes of prescription, and the provisions of article 83 of the GDPR should operate to determine the amount of the sanction, along, of course, with the weighting criteria (both of the LOPDGDD and the GDPR) already enumerated."

The aforementioned allegations are related to legal basis VII of the Resolution dated February 27, 2022.

In that legal basis, a response is given to the allegation regarding a supposed violation of the principle of typification and the allegations made by elDiario.es to the initiation agreement are reproduced:

"(...) we understand that the proposed sanction would be inappropriate, as it would violate the principle of typification because the sanction could never be qualified as very serious, but rather as minor, (...)"

As well as the following allegations made against the proposal for resolution:

"(...) we consider that the proposed sanction would be clearly inappropriate, as it would violate the principle of typification because the sanction could never be qualified as very serious, but at most as minor."

"The sanctioning body admits that it applies article 72.1.a) of the LOPDGDD, which includes a type of infringement considered very serious, 'there being no other infringement that could be applied to the facts, neither serious nor minor.' Perhaps it is because there is no reflection of this party's actions in the types enumerated in that law, neither in a minor form, nor in a serious form, much less in a "very serious" form.

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As provided in Article 27 of the Legal Regime of the Public Sector Law:

“Only those violations of the legal order that are expressly defined as such by a Law constitute administrative infractions.”

Therefore, it cannot be attributed the character of “very serious” to a conduct merely due to the absence of a legal provision that could classify the subject's action as a “serious” or “minor” infraction.” In the legal basis VII of the contested Resolution, it was highlighted that the responding party confused and mixed the typification of infractions, their severity, and their qualification for the purposes of prescription.

It was indicated:

“In this regard, it should be noted that the infractions related to data protection are typified in sections 4, 5, and 6 of Article 83 of the GDPR. This is a typification by reference, fully accepted by our Constitutional Court. In this sense, Article 71 of the LOPDGDD also makes reference to them by stating that ‘Acts and behaviors referred to in sections 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infractions.’

In this regard, the Opinion of the Council of State of October 26, 2017, regarding the Draft Organic Law on the Protection of Personal Data, states that ‘The European Regulation does indeed typify, albeit in a generic sense, the behaviors constituting an infraction: indeed, sections 4, 5, and 6 of its Article 83 contain a catalog of infractions for violations of the provisions of the European norm indicated in those sections. Article 72 of the Draft Law rightly assumes the existence of such a catalog when it states that ‘Acts and behaviors that constitute a violation of the content of sections 4, 5, and 6 of the European Regulation and this organic law constitute infractions.’”

The infractions established in Articles 72, 73, and 74 of the LOPDGDD are only for the purposes of prescription, as stated at the beginning of each of these provisions. This necessity arose in our State due to the absence of any reference to prescription regarding infractions in the GDPR, given that this legal institute is not common to all EU Member States.

Thus, the explanatory memorandum of the aforementioned organic law states that it “proceeds to describe typical behaviors; establishing the distinction between very serious, serious, and minor infractions, taking into consideration the differentiation that the General Data Protection Regulation establishes when setting the amount of sanctions. The categorization of infractions is introduced solely for the purpose of determining the prescription periods, having the description of typical behaviors as its only object the exemplary enumeration of some of the sanctionable acts that should be understood as included within the general types established in the European norm. The organic law regulates the cases of interruption of the...”

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prescription based on the constitutional requirement of knowledge of the facts attributed to the person” (the underlining is ours).

That is, it results from the application and interpretation of the GDPR, and not from the LOPDGDD, the determination of the severity of an infringement taking into account a series of conditions provided for therein. While the exemplary classification of infringements for the purposes of the prescription of the LOPDGDD has no effect regarding the determination of the severity of the infringement for the purposes of the GDPR nor concerning the imposition of the corresponding fines, if applicable.”

The Opinion of the Council of State of October 26, 2017, regarding the classification into very serious, serious, and minor offenses as provided in the Draft Organic Law on the Protection of Personal Data emphasizes: (the underlining is ours).

“This classification, however, has no significance regarding the amount of the fines. The determination of the amount of the fines to be imposed for the violation of the provisions mentioned in paragraphs 4, 5, and 6 of Article 83 of the European Regulation is the responsibility, according to European law, of the supervisory authorities, in accordance with the criteria for graduation established in paragraph 2 of

this same provision, among which is the "nature" or "severity" of the infringement."

Within the quantitative limits established by the European Regulation, the supervisory authorities, taking into account the greater or lesser severity of the infringement, must set the amount of the fines. Certainly, the margins available to the supervisory authorities are extremely broad - from 1 euro to 10,000,000 euros for infringement of the provisions mentioned in paragraph 4 of Article 83 and from 1 euro to 20,000,000 euros for infringement of the provisions mentioned in paragraphs 5 and 6 - which grants such authorities a high degree of discretion, far superior to what is usually customary in countries of our legal tradition. It is, in any case, the model desired by the European Regulation, hence the distinction between minor, serious, and very serious infringements contemplated in the Draft cannot have consequences in determining the maximum amount of minor infringements, and the determination of their amount must, in any case, be based on the assessment made by the supervisory authorities, according to the circumstances of the specific case, within the limits set in that regulation."

Thus, the classification of infringements for the purposes of the prescription of the LOPDGDD has no effect regarding the determination of the severity of the infringement for the purposes of the GDPR nor concerning the imposition of the corresponding fines, if applicable.

In the legal basis XIX of the Resolution of December 27, 2022, the following is indicated:

"The party being claimed has processed data that was excessive as it was not necessary for the purpose for which it was processed, which constitutes an infringement of Article 5.1.c) of the GDPR.

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The infringement attributed to the party being claimed is classified in Article 83.5, paragraph a) of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides that:

"Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;" In this regard, the LOPDGDD, in its Article 71 establishes that "The acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

The legal basis XX indicates the following:

"In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive."

"2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected data subjects and the level of damage and harm they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or

organizational measures they have implemented pursuant to Articles 25 and 32;

e) any previous infringement committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

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g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or the processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58(2) have been previously ordered against the controller or the processor in relation to the same matter, compliance with those measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

Regarding item k) of Article 83.2 of the GDPR, the LOPDGDD, Article 76, “Sanctions and corrective measures,” states:

“2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The ongoing nature of the infringement.

b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party may have induced the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having, when not mandatory, a data protection officer.

h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

In this case, the following aggravating criteria are considered concurrent:

- Aggravating factors:

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- Article 83.2.a) of the GDPR:

Nature, severity, and duration of the infringement: The nature of the infringement is considered very serious as it entails a loss of disposition and control over the personal data of a person who has been a victim of a violent crime and against sexual integrity, and by disseminating such personal data, there was a real risk that the individual could be recognized by third parties, with the serious damages and harm that this would cause.

- Article 83.2.b) of the GDPR.

Intentionality or negligence in the infringement: While it is considered that there was no intentionality on the part of the media outlet, it is deemed negligent for failing to ensure a procedure that guaranteed the protection of personal data in such sensitive circumstances, especially since in many cases the voice is distorted in news reports in order to prevent the identification of the speaking person.

- Article 83.2.g) of the GDPR.

Categories of personal data affected by the infringement: The real possibility of recognizing the victim of a crime as reported in the news, which is very serious, violent, and against sexual integrity (multiple rape), poses a serious detriment to the affected individual, as what happened is linked to her sexual life.”

Based on the provisions of Articles 83.1 and 83.2 of the GDPR, as previously reproduced, within the limits set forth in Article 83.5 of the GDPR and taking into account the aggravating criteria previously outlined, the contested Resolution imposes on elDiario.es a fine of 50,000 euros for an infringement of Article 5.1 c) of the GDPR, classified under Article 83.5 a) of the GDPR.

In this case, a fine of 50,000 euros has been imposed, which is at the lower end of the possible range. It should be noted that, according to the provisions of Article 83.5, the amount of this fine could reach 20,000,000 euros or, in the case of a company, an amount equivalent to 4% of the total global annual turnover of the previous financial year.

Recapitulating:

1. In this case, the infringement is classified under Article 83.5(a) of the GDPR.
2. The reference to the infringement contemplated in Article 72.1(a) of the LOPDGDD is made for the purposes of the statute of limitations, as indicated in the legal basis XIX of the Resolution of December 27, 2022.
3. The amount of the fine is within the lower range of possible fine amounts.

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The determination of the amount of the fine has been carried out observing the provisions of Articles 83.1 and 83.2 of the GDPR, evaluating certain criteria for graduation, which were deemed concurrent in the examined case, and to which reference is made in the legal basis XX of the contested Resolution.

Subsequently, in its allegations, elDiario.es highlights the following:

“Article 83.2 a) of the GDPR refers in any case to the ‘level of damages and harm suffered,’ which makes it seem legally forced to mix this article with provisions contemplated in recitals 74, 75, and 76 of the same GDPR that refer, respectively: 74, to the ‘appropriate and effective measures’ to be adopted by the data controller taking into account the risk to the rights and freedoms of natural persons; 75, to the variety and graduation of such risk; and 76, to the weighting of the same in relation to the measures to be adopted by the data controller. In no case do these recitals refer to the damages actually caused, as Article 83.2.a) does, which, in addition to being a dispositive article and not a recital, does refer to the weighting of the sanction and not to the ‘measures’ to be taken by the data controller.”

Once again, the appellant mixes different issues.

As previously indicated, the amount of the fine has been determined based on the provisions of Articles 83.1 and 83.2 of the GDPR, within the limits set forth in Article 83.5 of the GDPR and taking into account the criteria for graduation previously outlined, as a whole.

On the other hand, in legal basis X of the contested resolution, a response is provided to the assertion of elDiario.es regarding the claim that this media outlet had not caused any harm.

In this basis, two citations are made, one from the proposed resolution and another from the resolution itself - an aggravating circumstance provided for in Article 83.2 a) of the GDPR - to highlight that the dissemination of the victim's voice posed a certain risk that she could have been identified by individuals who were unaware of her status as a victim.

It is then emphasized that the GDPR starts from a perspective based on a risk-based approach.

Indicating that the management of compliance with the GDPR includes incorporating from the outset the management of risk in data protection within the organization by the data controller. In order to develop this idea, Article 24.1 of the GDPR, recitals 74, 75, and 76, and the Risk Management and Impact Assessment Guide for Personal Data Processing by the AEPD are cited.

The resolution concludes:

"Therefore, before carrying out the processing of personal data, it is necessary to assess whether such processing may involve a risk to the rights and freedoms of individuals."

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freedoms of individuals whose personal data is to be processed. Hence the necessity to conduct a risk analysis prior to the publication of the news, which allows for the detection of such risk, its analysis, and the adoption of appropriate measures.

From this perspective, what is important is not whether the risk of the victim being recognized has materialized or not, but whether there is a risk that someone who hears their voice without distortion can identify them. That is to say, the focus is not on the certainty that someone has identified them through their voice, but on the fact that by publishing the news along with the undistorted voice, a certain risk situation has been generated whereby someone could potentially identify them, which is a particularly serious matter in an event such as that which gives rise to the news."

Subsequently, in its appeal document, elDiario.es argues:

"In this case, the negligence of this party has not been proven, taking into account all the circumstances of the case and its diligent attitude, and it is imposed with a fine of 50,000 euros quantified with criteria that are not objective, not even within the proposed typification (we do not understand why it should be exactly 50,000, and not 10,000 for example: at most it is indicated that 'it is far from the maximum limit provided,' a weighting that clearly appears to be the opposite of objective). A sanction that, despite having ignored the mitigating circumstances indicated and in any hypothetical amount, we consider to be entirely inadequate, erroneous, and unjust for this case."

The assertions made by elDiario.es are not shared, as part of the content of the legal grounds XIX and XX of the challenged Resolution relating to the typification and the aspects taken into account when determining the amount of the fine have already been reproduced.

It is worth recalling again the statements made by the Council of State in the Opinion of October 26, 2017, regarding the Draft Organic Law on the Protection of Personal Data: (the underlining is ours) "(...). Certainly, the margins available to the supervisory authorities are very broad - from 1 euro to 10,000,000 euros for violations of the provisions mentioned in section 4 of article 83 and from 1 euro to 20,000,000 euros for violations of the provisions mentioned in sections 5 and 6 - which grants such authorities a high degree of discretion, far superior to what is usually common in countries of our legal tradition. It is, in any case, the model desired by the European Regulation, hence the distinction between minor, serious, and very serious violations contemplated in the Draft cannot have consequences in determining the maximum amount for minor violations, and the determination of their amount must, in any case, be based on the assessment made by the supervisory authorities, in accordance with the circumstances of the specific case, within the limits set in that regulation."

In the last section of the appeal, titled "Violation of effective judicial protection due to the inadmissibility of requested evidence," elDiario.es again formulates allegations.

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which has already been raised previously. This Agency refers to the content of the legal basis XII of the contested resolution.

In the written appeal, elDiario.es requests:

"-That, hereby, the immediate suspension of the enforceability of the contested Resolution is requested, until the resolution of the relevant appeal for reconsideration."

This request is made for a specific time period, the time that elapses between the filing of the appeal for reconsideration and its resolution. This period would have concluded with the signing of this

resolution.

Furthermore, in accordance with the provisions of Article 117.1 and 2 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations:

“1. The filing of any appeal, except in cases where a provision establishes otherwise, shall not suspend the execution of the contested act.

2. Notwithstanding the provisions of the previous paragraph, the body competent to resolve the appeal, after weighing, with sufficient reasoning, the harm that the suspension would cause to the public interest or to third parties against the harm caused to the appellant as a result of the immediate effectiveness of the contested act, may suspend, ex officio or at the request of the appellant, the execution of the contested act when any of the following circumstances occur:

a) That the execution could cause harm that is impossible or difficult to repair.

b) That the challenge is based on any of the causes of nullity of full right provided for in Article 47.1 of this Law.”

Upon examining the written appeal, it is noted that it does not indicate any grounds on which this request is based, in the terms outlined in the described provision.

In relation to this issue, it is necessary to emphasize (since no cause of nullity is alleged) that, although the suspension of the enforceability of administrative acts should be a measure applicable whenever necessary, when the execution of the resolution results in harm that is impossible or difficult to repair, these must be explicitly alleged and proven for the purposes of the weighing that this Administration is obliged to carry out. It should be added that, in principle, acts of merely economic content are not likely to cause harm that is impossible or difficult to repair, as they can be repaired through restitution.

All of this is unless the amount of the act in relation to the assets of the sanctioned party suggests otherwise.

Consequently, the request for suspension made is not admissible.

III

Conclusion

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Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

Considering the cited provisions and others of general application,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by El Diario de Prensa Digital SL against the resolution of this Spanish Agency for Data Protection issued on December 27, 2022, in file RR/00048/2023.

SECOND: TO DISMISS the request for suspension of the enforceability of the contested resolution, until the appeal for reconsideration is resolved.

THIRD: TO NOTIFY this resolution to El Diario de Prensa Digital SL.

FOURTH: To warn the sanctioned party that the imposed sanction must be enforced once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it in the restricted account no. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, collection will proceed in the executive period. Upon receipt of the notification and once it is executive, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next

business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case,

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In this case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. The interested party must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the precautionary suspension to be concluded.

180-111122

Mar España Martí

Director of the Spanish Agency for Data Protection

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